

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 9, 2026
8:30 a.m./1:30 p.m.

3. JENNIFER DANIELS V. JOSE CARRERO

PFL20170812

On March 10, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders and an order for Respondent to attend anger management classes. The RFO was filed ex parte and the parties were referred to an emergency set Child Custody Recommending Counseling (CCRC) appointment. A review hearing was set for the present date. All required documents were served on March 10th.

Respondent filed a Responsive Declaration to the ex parte using the requisite FL-320. However, on March 16, 2026, he filed an Amended Responsive Declaration and a 2nd Amended Responsive Declaration, neither of which utilize the required FL-320 form therefore, the court has not read or considered these documents.

The parties attended Child Custody Recommending Counseling (CCRC) on March 17, 2026 and were able to reach some agreements. A report with the agreements and recommendations was prepared and mailed to the parties on March 25, 2026.

On April 2, 2026, Respondent filed a response to the CCRC report. Petitioner also filed a Response to CCRC Report and Response to Respondent's Declaration(s), Objections and Request to Strike.

Respondent filed a Reply Declaration on April 2nd. He filed another Reply Declaration on April 3rd. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made April 2nd the last day for filing a Reply Declaration therefore the April 3rd Reply is late filed and it has not been read or considered by the court.

Petitioner is requesting sole legal and sole physical custody of the minor until Respondent has completed anger management. She also requests an order for Respondent to participate in anger management.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #3: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

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4. MARK DAVIS V. MARY DAVIS

22FL0006

This matter is before the court for hearing on the Request for Order (RFO) filed by the Petitioner on October 1, 2024, to modify child support¹ and spousal support. Petitioner concurrently filed an Income and Expense Declaration (I&E). The hearing on Petitioner's RFO has been continued multiple times based upon stipulation of the parties. The court notes, however, there is no stipulation in the court's file reserving the court's jurisdiction to retroactively modify support to the date the RFO was filed.

On March 24, 2026, the Respondent filed a Responsive Declaration, as well as a current I&E. Both filings were electronically served upon the Petitioner's attorney that same day, according to the proof of service, also filed March 24, 2026. Respondent consents to guideline child support from October 1, 2024, through May 31, 2025² (Mary Davis Decl., ¶ 3.a.) and zero spousal support as of October 1, 2024 (Mary Davis Decl., ¶ 3.b.), but requests payment of Petitioner's outstanding arrears, plus interest, in a lump sum payment to be made no later than 30 days after the court's order³ (Mary Davis Decl., ¶ 3.c.).

On April 6, 2026, the Petitioner filed an updated I&E, which was electronically served upon Respondent's attorney that same day, according to the attached Proof of Service. The court does not consider the Petitioner's April 6, 2026 filing due to its untimeliness. (Code Civ. Proc., § 1005, subd. (b) [reply papers shall be filed at least five court days before the hearing].)

TENTATIVE RULING #4: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

¹ During the period of October 1, 2024, through present, there is only one minor child for which the parties are obligated to provide support, namely, DD (DOB: 11/22/2006). Both parties acknowledge that their two older children previously "aged out." (Fam. Code, § 3901, subd. (a)(1).)

² It is the court's understanding that May 31, 2025, is the date in which DD, who has attained 18 years of age, was no longer a full-time high school student. (See Fam. Code, § 3901, subd. (a)(1).)

³ The court notes that Respondent's request for payment of outstanding arrears plus interest is a separate request for relief and thus would require a separate noticed RFO; presently, the issue is not before the court.